

Executive Engineer, 3rd Division, Jaunpur, Purvanchal Vidyut Vitaran Nigam Limited v. Mahendra Seth

High Court of Judicature at Allahabad · Single Judge · 18 October 2023 · 2023:AHC:203034 · WRIT - C No. 29397 of 2023 · **Writ disposed without merits findings; consumer to move a fresh clause 6.5 application before the Executive Engineer within three weeks, to be decided within two months, with no coercive action until then.**

HEADNOTE

The licensee's writ against Permanent Lok Adalat orders was disposed without any opinion on the merits. The consumer was directed to file a fresh application under clause 6.5 of the Electricity Supply Code, 2005 before the Executive Engineer within three weeks, to be heard and decided within two months if there is no other legal impediment. Coercive action stays until that order.

FACTUAL SUMMARY

The Executive Engineer, 3rd Division, Jaunpur, of Purvanchal Vidyut Vitaran Nigam Limited challenged Permanent Lok Adalat, Jaunpur orders of 15 December 2022 and 2 January 2023 in Case No. 33 of 2022, Mahendra Seth versus the Executive Engineer. The licensee said notices under section 22C of the Legal Services Authorities Act, 1987 were issued only on 19 July and 26 September 2022, and pointed to clause 6.5 of the Electricity Supply Code, 2005 as the grievance route. Seth told the Court he was ready to move such an application.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

Writ disposed by fresh clause 6.5 application to the Executive Engineer

HOLDING

Without expressing any opinion on the merits, the writ is finally disposed of by directing the consumer to make a fresh application under clause 6.5 of the Electricity Supply Code, 2005 before the Executive Engineer concerned within three weeks, with a certified copy of the order. If the application is made, it may be decided after hearing him within two months, unless another legal impediment exists. Until that final order, no coercive action shall be taken against him. ¶ 2-3

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ against the Permanent Lok Adalat orders was disposed, without a finding on those orders, by sending the consumer to a fresh application under clause 6.5. ¶ 2-3

clause-6.5-representation-executive-engineer The consumer must apply to the Executive Engineer under clause 6.5 within three weeks; if he does, the Engineer may hear and decide the application within two months, and coercive action is withheld until that order. ¶ 2-3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE PERMANENT LOK ADALAT ORDERS DATED 15.12.2022 AND 02.01.2023

The writ was disposed without any opinion on the merits. ¶ 2-3

NOT DECIDED — WHETHER SECTION 22C NOTICES HAD TO ISSUE EVERY DAY AND WERE BAD BECAUSE THEY ISSUED ONLY ON 19.07.2022 AND 26.09.2022

Raised by the licensee on the Lok Adalat order sheet and left undecided. ¶ 2-3

NOT DECIDED — MERITS OF THE CONSUMER'S SUPPLY GRIEVANCE

SCJ-3556 · Executive Engineer, 3rd Division, Jaunpur, Purvanchal Vidyut Vitaran Nigam Limited v. Mahendra Seth · 2023:AHC:203034 · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.